

25STLC00489 25STLC00489

County: los-angeles

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Case Number: 25STLC00489 Hearing Date: June 24, 2026 Dept: 26

TENTATIVE RULING:

Defendant LAD-N, LLC's Motion
for Summary Judgment is Denied.

Analysis:

Plaintiff

Sean Richson ("Plaintiff"), in propria persona, brought this action for breach of contract against Defendant LAD-N, LLC (erroneously sued as "Nissan of Downtown LA") ("Defendant") on January 23, 2025. Defendant filed an Answer on March 7, 2025. On December 29, 2025, the Court denied Plaintiff's Motion for Summary Judgment. (Minute Order, 12/29/25.)

Defendant filed the instant Motion for Summary Judgment on March 23, 2026. The Motion was originally set for hearing on June 22, 2026, but continued due to the Court's unavailability to June 24, 2026. (Minute Order, 04/22/26.) Plaintiff filed an opposition on June 2, 2026.

Discussion

Defendant moves for summary judgment on the complaint pursuant to Code of Civil Procedure section 437c. A defendant seeking summary judgment must show either (1) that one or more elements of the cause of action cannot be established; or (2) that there is a complete defense to that cause of action. (Code Civ. Proc., § 437c,

subd. (p)(2).) The plaintiff is under no evidentiary burden to produce rebuttal evidence until the moving defendant meets its initial moving burden. (Binder v. Aetna Life Insurance Company (1999) 75 Cal.App.4th 832, 839-840.)

Allegations in the Complaint

The Complaint alleges that Plaintiff purchased a vehicle from Defendant on March 8, 2024, and because Plaintiff did not have insurance, Defendant agreed to insure and cover the vehicle. (Compl., ¶¶BC-1 and BC-2.) Defendant allegedly breached the agreement by refusing to honor the insurance agreement after Plaintiff was involved in a motor vehicle accident. (Ibid.) Plaintiff seeks to recover \$20,014.00 in damages, and attorney's fees. (Ibid.)

Defendant's Initial Burden of Proof

To prevail on a cause of action for breach of contract, Plaintiff must prove that (1) a valid contract existed, (2) the plaintiff performed his obligations, or was excused from performing, (3) the defendant breached the contract, (4) the breach caused harm, and (5) the plaintiff suffered damages. (CACI No. 303; Richman v. Hartley (2014) 224 Cal.App.4th 1182, 1186.)

Defendant moves for summary judgment on the grounds that it did not breach any agreement with Plaintiff. Specifically, Defendant argues that the coverage Plaintiff obtained was from a third-party insurer and only extended 30 days after purchase, but the motor vehicle accident occurred on April 29, 2024. In support of the Motion, Defendant presents the following facts as undisputed.

Plaintiff purchased a 2020 Nissan Sentra, Vehicle Identification Number 3N1CN8EV2LL879240, ("Subject Vehicle") from Defendant on March 8, 2024. (Motion, Separate Statement, Fact No. 1; Leon Decl., Exh. A.) Defendant is not in the business of providing insurance coverage to customers, but has relationships with various insurance carriers that offer customers temporary insurance for exactly 30 days from the date of purchase. (Motion, Separate Statement, Fact No. 3; Leon Decl., ¶5.) Defendant provided Plaintiff with an Agreement to Provide Insurance, which gave Plaintiff the right to elect six months of coverage with Integon National Insurance Company, Policy No. SBA23CA0560/LL879240. (Motion, Separate

Statement, Fact Nos. 5, 8; Leon Decl., Exh. B.) It also provided that Plaintiff agreed it was his responsibility to obtain liability insurance. (Motion, Separate Statement, Fact No. 11; Leon Decl., Exh. B.) Plaintiff reviewed and signed Agreement to Furnish Insurance. (Motion, Separate Statement, Fact No. 12; Leon Decl., Exh. B.)

Defendant also presented

Plaintiff with a Binder of Insurance Coverage statement issued by Integon National Insurance Company, Policy No. SBA23CA0560/LL879240, that expressly stated it was effective for 30 days, from March 8, 2024 to April 7, 2024.

(Motion, Separate Statement, Fact No. 13; Leon Decl., ¶15 and Exh. C.)

Plaintiff reviewed the statement and signed it on March 8, 2024. (Motion, Separate Statement, Fact No. 14; Leon Decl., ¶16 and Exh. C.) Plaintiff was involved in a motor vehicle accident on April 29, 2024. (Motion, Separate Statement, Fact No. 17; Kienle Decl., ¶¶2-3 and Exh. 1.) Plaintiff filed the instant action against Defendant on January 23, 2025, alleging breach of a contract to insure and cover the damages he incurred in the April 29, 2024 accident. (Motion, Separate Statement, Fact No. 18; Kienle Decl., ¶2 and Exh. 1.)

This evidence does not carry

Defendant's initial burden of proof to demonstrate that Plaintiff cannot support the elements of a cause of action for breach of contract. (Code Civ. Proc., §437c(c).) The undisputed

evidence shows that Plaintiff signed two agreements on March 8, 2024, each purporting to provide insurance coverage to Plaintiff under Integon National Insurance Company, Policy No. SBA23CA0560/LL87924 (the "Policy"). One agreement stated that coverage under the Policy was provided for 30 days; the other stated that coverage under the Policy was available for six months. Defendant characterizes the Agreement to Furnish Coverage ("Agreement") as offering Plaintiff the ability to "elect" six months' coverage, but the Agreement states nothing about requiring Defendant to elect to extend the coverage. (See Leon Decl., Exh. B.) It simply identifies the Policy by number,

including the amount of deductibles, as though in effect. (Id.)

Defendant's evidence on its face therefore creates a fact issue that precludes summary judgment in its favor.

(See Code Civ. Proc., §437c(c).) Defendant

also avers that Defendant cannot be held responsible for any insurer's failure to pay because Defendant is not an insurer. (See Mot. at 3; Separate Statement, Fact No. 3; Leon Decl., ¶15.) This does not negate Defendant's

responsibility for the insurance coverage offered in connection with the sale. Exhibit C identifies the Policy as Defendant's insurance policy. (Leon Decl., Exh. C.) Thus, it appears that Defendant offered to extend coverage under its own policy for a period of time after Defendant purchased the car. That is an offer that Defendant appears to believe it had authority to make; Defendant identifies nothing that establishes as a matter of law that it cannot be held legally responsible for doing so.

Because Defendant did not meet its burden, the burden does not shift to Plaintiff to submit evidence in opposition that demonstrates the existence of a triable issue of material fact. (Code Civ. Proc., §437c(c).)

In any event, the Court does not consider Plaintiff's papers in opposition. Plaintiff's opposition was flawed, in that Plaintiff did not attach a proof of service showing that the Opposition was served upon Defendant as required by Code of Civil Procedure section 437c, subdivision (b)(2). (Response to: Notice of Motion and Motion Opposition to Motion for Summary Judgment, filed 06/02/26.) Additionally, the opposition is not supported by an opposing separate statement, which is also required by the Code of Civil Procedure. (See Code Civ. Proc., § 437c, subd. (b)(3).) "Separate statements are required not to satisfy a sadistic urge to torment lawyers, but rather to afford due process to opposing parties and to permit trial courts to expeditiously review complex motions" (Whitehead v. Habig (2008) 163 Cal.App.4th 896, 902 [citing United Community Church v. Garcin (1991) 231 Cal.App.3d 327, 335].) The Court will not consider the opposition in light of these due process violations. Nonetheless, for the reasons stated above, Defendant is not entitled to summary judgment.

Conclusion

Based on the foregoing, Defendant LAD-N, LLC's Motion for Summary Judgment is Denied.

Moving party to give notice.